

In re: Show Cause Hearing Request of Boston Globe Media Partners, LLP to Attend Show Cause Hearing Pursuant to Standard 3:15 of the District Court's Revised Standards on the Complaint Procedure Decision

On or about December 18, 2023, the United States Attorney's Office in Massachusetts publicly announced that law enforcement officials had filed paperwork seeking criminal complaints in Cambridge District Court against individuals purportedly accused of sexual conduct for a fee.

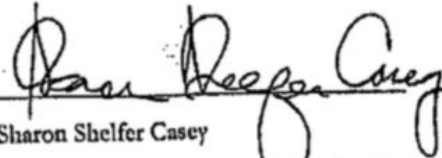
On December 19, 2023, a representative from NBC 10 Boston submitted a request seeking access to any hearings held in connection with these matters. On December 20, 2023, counsel for the Boston Globe filed the above referenced formal request seeking the same relief as NBC 10 Boston. That same day, a representative from WBUR requested access to hearings involving "defendants seeking or holding political office or in other key government positions."

"Presumptively, show cause hearings are private and closed to the public." Standard 3:15, Revised Standards on the Complaint Procedure. The Standard goes on to state that, "[w]hen there is a request that the public be permitted to attend, the magistrate should require that the person or organization making the request show a legitimate reason for access that justifies an exception to the rule. If the application is one of special public significance and the magistrate concludes that legitimate public interests outweigh the accused's right of privacy, the hearing may be opened to the public and should be conducted in the formal atmosphere of a courtroom." "Where an incident has already attracted public attention prior to a show cause hearing, the interest in shielding the participants from publicity is necessarily diminished, while the public's legitimate interest in access is correspondingly stronger." *Eagle-Tribune Pub. Co. v. Clerk-Magistrate of Lawrence Div. of Dis. Court Dept.*, 448 Mass. 647, 656 (2007).

The presumption of show cause hearings being closed and protecting the privacy rights of individuals accused of misdemeanor crimes has been a long standing and important practice of the Court. However, the Court has recognized the very limited exception where legitimate public interest outweighs the individuals' privacy rights. Having considered all of the facts and circumstances and the above referenced request, the request is hereby allowed.

Hearings are in the process of being scheduled and will take place at the Cambridge District Court, 121 Third Street, Cambridge, MA 02141.

Date: December 21, 2023


Sharon Shelfer Casey
Clerk-Magistrate Cambridge District Court

CAMBRIDGE DISTRICT COURT
CLERK'S OFFICE

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